

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GREGORY J. DUVA,

Plaintiff,

**SUMMONS TO THE
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. JOSEPH T. MANFRA, Shield
No. 24896; INSPECTOR WILLIAM G. TAYLOR and P.O. JOHN
DOES # 1-5, the individual defendant(s) sued individually and in
their official capacities,

Defendants.

Index:

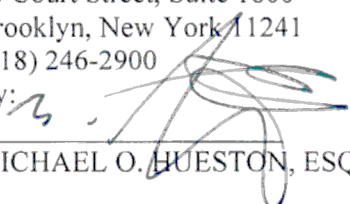
Basis of Venue: occurrence of
incident – SW Riegelman Boardwalk
and West 21st Street, Brooklyn, New
York

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To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
December 20, 2018

MICHAEL O. HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900

By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; P.O. Joseph T. Manfra, Shield No. 24896; Inspector William G. Taylor; and P.O. JOHN DOES # 1-5, 60th Police Precinct 2951 West 8th Street, Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GREGORY J. DUVA,

Plaintiff,

VERIFIED COMPLAINT

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THE CITY OF NEW YORK; P.O. JOSEPH T. MANFRA,
Shield No. 24896; INSPECTOR WILLIAM G. TAYLOR and
P.O. JOHN DOES # 1-5, the individual defendant(s) sued
individually and in their official capacities,

Basis of Venue: occurrence of
incident – SW Riegelman
Boardwalk and West 21st Street,
Brooklyn, New York

Defendants.

-----X

Plaintiff Gregory J. Duva, by and through his counsel, Michael O.

Hueston, Esq., and Andrew S. Rendeiro, Esq., upon information and belief, allege as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that arose on or about September 23, 2017. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; unreasonable force; failure to intervene; denial of a fair trial/fabricated evidence; and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

3. Plaintiff Gregory J. Duva is a resident of the State of New York, Kings County at 71 Brooklyn Avenue, Apt. 303 11206.

4. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

5. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

6. At all times alleged herein, defendants P.O. Joseph T. Manfra, Shield # 24896; Inspector William G. Taylor and P.O. John Does # 1-5 were employed as police officers with the 60th NYPD Police Precinct, located in Kings County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

7. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

7. On September 23, 2017, at and in the vicinity of the SW Riegelman Boardwalk and West 21st Street, Brooklyn, New York, several police officers operating from the 60 Precinct located in Kings County, New York, including upon information and belief, the individual defendants P.O. Joseph T. Manfra, Shield # 24896; Inspector William G. Taylor and P.O. John Does # 1-5 (“the police”), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

8. On September 23, 2017, at approximately 8:10 p.m., at and in the vicinity of the SW Riegelman Boardwalk and West 21st Street, Brooklyn, New York, the police without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime unlawfully arrested plaintiff.

9. Plaintiff was at the SW Riegelman Boardwalk at West 21st Street, Brooklyn, New York awaiting the start of a concert.

10. The police approached and detained plaintiff.

11. There was no cause or justification to approach plaintiff.

12. There was no cause or justification to detain plaintiff.

13. The police grabbed plaintiff and handcuffed him behind his back.

14. The police searched plaintiff without cause or justification.

15. The police found no contraband, weapons, or controlled substances on plaintiff.

16. Plaintiff protested that he was doing nothing illegal but was ignored by the Defendants.

17. The police shoved plaintiff into a police vehicle and transported him to the 60th Police Precinct for processing.

18. The police kept plaintiff in handcuffs for hours.

19. The handcuffs were extremely tight, but the police ignore plaintiff's requests to loosen them.

20. The police transported plaintiff to Brooklyn Central Booking for arraignment.

21. Plaintiff was detained at Central Booking.

22. In order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by false sworn complaint(s) and/or conversations, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes, including Criminal Trespass.

23. Plaintiff was brought to Kings County Criminal Court Arraignment where the Assistant District Attorney arraigned Plaintiff and released him on his own recognizance.

24. All the criminal charges against plaintiff were dismissed and his records sealed on December 27, 2017.

25. Plaintiff was physically injured, humiliated, and embarrassed by the experience.

Further Allegations

26. Plaintiff did not resist arrest at any time during the above-described incidents.

27. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

28. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

29. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

30. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

31. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE)

32. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

33. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

34. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(FALSE ARREST)

35. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

36. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

37. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

THIRD CLAIM

(UNREASONABLE FORCE)

38. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

39. The individual defendants' use of force upon plaintiff was objectively unreasonable.

40. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

41. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

42. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM
(FAILURE TO INTERVENE)

43. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

44. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

45. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FIFTH CLAIM
(DENIAL OF A FAIR TRIAL/FABRICATION OF EVIDENCE)

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against plaintiff, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

48. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

49. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiff of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

SIXTH CLAIM

(MONELL CLAIM)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

52. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) arresting innocent persons in order to meet productivity goals and without cause; (2) using unreasonable force on individuals; and (3) fabricating evidence against innocent persons.

53. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

54. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

55. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

56. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

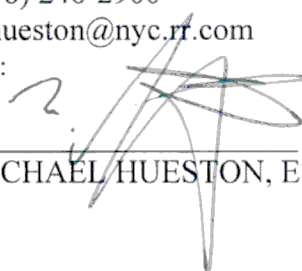
58. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
December 20, 2018

MICHAEL HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com

By:


MICHAEL HUESTON, ESQ.

VERIFICATION

I, GREGORY J. DUVA, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



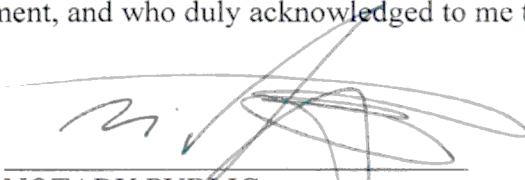
GREGORY J. DUVA

STATE OF NEW YORK)

: SS:

COUNTY OF Kings)

On the 20th day of December, 2018, before me personally came and appeared GREGORY J. DUVA to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL O HUESTON
Notary Public, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2018

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

GREGORY J. DUVA,

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-against-

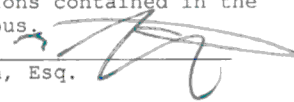
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 1800
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 12/20/2018 Signature: 

Michael Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2018

....., Esq.

Attorney for.....